

allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings."].)

The futility doctrine relied on by Stillwater has typically been applied to deny a motion for leave to amend where, for example, the claim is clearly barred by a failure to exhaust administrative remedies or is clearly barred by the statute of limitations. (See, e.g., *California Casualty Gen. Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280-281, disapproved on other grounds in *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390 [granting petition for writ of mandate and reversing trial court's denial of leave to amend answer to add novel affirmative defense]; *Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230 [proposed amendment barred by statute of limitations and no basis for "relation back"]; *Royalty Carpet Mills, Inc. v. City of Irvine* (2005) 125 Cal.App.4th 1110, 1124 [denial of leave to amend petition for writ of mandate affirmed because amended claim barred by statute of limitations].)

No trial date is set in the case, and discovery is ongoing. A continued case management conference is set for January 13, 2026, and there are a series of discovery motions scheduled in June 2026. Stillwater has not shown prejudice if the amended complaint is allowed to be filed, other than having to attempt to defeat the amended claims on the merits. Stillwater will have the opportunity to challenge the merits of amended claim by means other than opposition to this motion. Given the liberal policy of allowing amendment of pleadings, and the lack of a showing of prejudice, the Court will follow the "preferable practice" and not test the legal merit of the FAC on this motion.

18. 9:00 AM CASE NUMBER: MSC21-00636
CASE NAME: THUAT TON-HARMON VS. FPI MANAGEMENT, INC.
***HEARING ON MOTION IN RE: SET TRIAL DATE**
FILED BY: TON-HARMON, THUAT
TENTATIVE RULING:

Appearance required.

19. 9:00 AM CASE NUMBER: N25-1806
CASE NAME:
***HEARING ON MINOR'S COMPROMISE PETITION FOR APPROVAL OF COMPROMISE OF CLAIM OR ACTION OR DISPOSITION OF PROCEEDS FILED ON 9-10-25 BY NOAH BINSOL**
FILED BY:
TENTATIVE RULING:

The petition for minor's compromise is approved.